



CHAPTER cxl.

An Act to empower the Southend and Colchester Light Railways Company to construct piers to establish and work ferries across the River Crouch and the River Blackwater to acquire Creeksea Ferry to raise additional capital and for other purposes. [4th August 1905.]

A.D. 1905

WHEREAS by the Southend and Colchester Light Railways Order 1904 (in this Act called "the Order of 1904") the Southend and Colchester Light Railways Company (in this Act called "the Company") were incorporated and authorised to make and maintain certain railways in the county of Essex:

And whereas it would be for the public advantage that the Company should be empowered to make and maintain the piers hereinafter described and to establish work and regulate certain ferries across the River Crouch and the River Blackwater in connection with the said railways and piers:

And whereas it is expedient that the Company should be authorised to raise such additional capital and to borrow such further money as may be necessary for the purposes of this Act and of the undertaking of the Company:

And whereas plans and sections showing the lines situations and levels of the works authorised by this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the provisions of this Act were duly deposited with the clerk of the peace for the county of Essex and are hereinafter respectively referred to as the deposited plans sections and book of reference:

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And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Southend and Colchester Light Railways Act 1905.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Works.

(1) *Piers.*

(2) *Ferries.*

Part III.—Lands.

Part IV.—Rates.

(1) *Piers.*

(2) *Ferries.*

Part V.—Additional Capital.

Part VI.—Miscellaneous.

Incorporation
of Acts.

3. The following Acts and parts of Acts are except where expressly varied by this Act incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts :

The Companies Clauses Consolidation Act 1845 :

Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts :

The Harbours Docks and Piers Clauses Act 1847 except the provisions thereof with respect to lifeboats and to keeping a tide and weather gauge unless the Board of Trade shall in the case of such last-mentioned provisions otherwise require.

4. In this Act unless the subject or context otherwise requires— A.D. 1905.

Words or expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith or which have therein special meanings have in this Act the same respective meanings; Interpretation.

“The undertaking” means the undertaking of the Company;

“Vessel” includes steamer ship barge boat and craft of every class and description however propelled;

“Crane” includes crane hoist coal tip lift legs and capstan by whatsoever power worked.

PART II.

WORKS.

(1) *Piers.*

5. Subject to the provisions of this Act the Company may make and maintain in the lines or situations and according to the levels shown on the deposited plans and sections the piers hereinafter described The piers referred to in this section and which are all in the county of Essex are— Power to construct piers.

(a) A pier on the south bank of the River Crouch in the parish of Canewdon commencing at a point $12\frac{1}{2}$ chains or thereabouts east of Ferry Boat Inn and marked (a) on the plans deposited with the Board of Trade for the purposes of the Order of 1904 and extending in a northerly direction for a distance of $1\frac{1}{2}$ chains or thereabouts to a point in the River Crouch:

(b) A pier on the north bank of the River Crouch in the parish of Creeksea commencing at a point 19 chains or thereabouts east of the landing place of Creeksea Ferry and marked (b) on the plans deposited with the Board of Trade as aforesaid and extending in a southerly direction for a distance of $4\frac{1}{2}$ chains or thereabouts to a point in the River Crouch:

(c) A pier on the south bank of the River Blackwater in the parish of Bradwell-juxta-Mare commencing at a point 2 furlongs or thereabouts east of Bradwell

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—

Creek and marked (c) on the plans deposited with the Board of Trade as aforesaid and extending in a northerly direction for a distance of 19 chains or thereabouts to a point in the River Blackwater:

- (d) A pier on the north bank of the River Blackwater in the parish of West Mersea commencing at a point $6\frac{1}{2}$ furlongs or thereabouts east of West Mersea Church and marked (d) on the plans deposited with the Board of Trade as aforesaid and extending in a southerly direction for a distance of 37 chains or thereabouts to a point in the River Blackwater.

Power to
deviate.

6. In constructing the piers by this Act authorised the Company may deviate laterally to any extent within the limits of deviation shown upon the deposited plans and vertically from the levels shown upon the deposited sections to any extent not exceeding five feet downwards and ten feet upwards Provided always that in the construction of the piers below high-water mark the Company shall not deviate laterally or vertically without the consent in writing of the Board of Trade Provided also that as regards the pier on the north bank of the River Crouch by this Act authorised the Company shall not deviate laterally to a greater extent than fifty feet on either side of the said pier shown on the deposited plans without the consent in writing of the lord of the manor of Burnham-with-Mangapp and Creeksea and of William Rome and his successors in estate.

Power to
dredge.

7. Subject to the provisions of this Act the Company may so far as may be necessary for the purposes of this Act dredge and continue to dredge and otherwise deepen the bed and foreshore of the River Crouch and the River Blackwater adjoining the piers and may purchase hire provide and maintain all necessary dredgers barges and machinery therefor Provided that all soil and materials in the course of such dredging and deepening of the River Crouch shall if so required be delivered by the Company to the person or persons entitled to the bed and soil of the said River Crouch at such place or places as he or they or his or their agents shall direct not being more than one mile from the place where such dredging and deepening shall take place Provided further that if within seven days after notice given by the Company in writing to such person or persons no directions for disposal of such soil and materials

shall be given the Company may appropriate use and dispose of the same as they think fit Provided that if any such surplus soil or materials are deposited below high-water mark they shall only be deposited in such position and under such restrictions as may be fixed by the Board of Trade.

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8. Every person who wilfully obstructs any person acting under the authority of the Company in setting out the line of the works or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the line of the works shall for every such offence be liable to a penalty not exceeding five pounds.

Penalty for obstructing works.

9. If the piers are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the piers or otherwise in relation thereto shall cease except as to so much thereof as are then completed.

Period for completion of piers.

10. The limits within which the authority and jurisdiction of the Company with respect to the piers shall be exercised shall comprise the piers and the lands approaches works and conveniences authorised to be acquired therefor or connected therewith respectively and as regards the River Crouch within an area of one hundred feet measured riverwards in any direction from any part of each pier and as regards the River Blackwater the area within a radius of one hundred and twenty yards from the centre of each pier head.

Limits of Act.

11. The Company may with the consent in writing of the Board of Trade construct and provide on or in connection with the piers all such railways sidings tramways footways carriage-ways promenades approaches roads communications steps slip-ways embankments dams walls slopes groynes jetties landing stages quays wharves culverts sewers drains buildings stations warehouses custom houses sheds toll-houses toll-gates or bars lamps lamp-posts cranes buoys dolphins moorings water gas and electric appliances and other works and conveniences as may be necessary or proper for working such piers Provided that no railways or tramways by this Act authorised shall be used for the public conveyance of passengers unless and until the same shall have been inspected and certified by the Board of Trade as fit for that purpose.

Subsidiary pier works.

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Company
may provide
refreshment
and other
rooms.

12. The Company may erect upon the piers and approaches to be constructed in the River Blackwater waiting refreshment and other rooms and baths saloons pavilions and other accommodation for musical and other public entertainments and assemblies and may in addition to the charge for the use of the piers demand and recover such reasonable sums for the use of such rooms and admission to such entertainments and assemblies as they may from time to time think fit.

Refreshment
rooms.

13. For the purposes of any licence for any refreshment rooms or other like accommodation erected or provided or to be erected or provided by the Company on the piers and the approaches the manager or the tenant thereof as the case may be if designated as such by the Company shall be deemed to be the real resident holder and occupier of the premises for which the licence is required.

Company
may provide
steamers.

14. The Company may purchase build employ maintain and sell or lease vessels for the conveyance of passengers goods merchandise and things of every description between the piers on the one hand and any passenger trading or merchant vessels passing into or through the River Crouch or the River Blackwater to or from any port or place on the other hand and the Company may ask demand and recover for the use of such vessels and for the conveyance of passengers goods merchandise and other things therein or thereon such reasonable rates or sums as they shall think fit Provided nevertheless that the Company shall in the exercise of the powers hereby conferred be subject as to such vessels to all provisions statutory or otherwise as to hiring registration or otherwise as are for the time being in force with reference to vessels owned and employed by persons other than the Company Provided also that officers of the customs police and coastguards when on duty shall at all times when they require it be conveyed free of charge in such vessels when conveying passengers goods or merchandise.

Power to ap-
point meters
and weighers.

15. The Company shall have the appointment of meters weighers and other officers and servants.

Life-buoys
to be kept.

16. The Company shall at all times keep at the outer extremity of the piers and at reasonable distances along such piers and in accordance with any requirements which may be made by the Board of Trade a sufficient number of life-buoys and lines in good order and fit and ready for use.

17. The officers of the coastguard and all other persons for the time being actually employed in connection with any lifeboat or any apparatus for saving life may either permanently or temporarily and from time to time without payment attach or cause to be attached to any part of the piers spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the piers.

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Life-saving
apparatus
may be
attached to
piers.

18. In case of injury to or destruction or decay of the piers or any part thereof the Company shall lay down such buoys exhibit such lights or take such other means for preventing as far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that Corporation for directions as to the means to be taken and the Company shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any such directions.

Provision
against
danger to
navigation.

19.—(1) The Company shall not under the powers of this Act construct on the shore or bed of any navigable river or of any creek bay or arm communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals.

Works below
high-water
mark not to
be com-
menced with-
out consent
of Board of
Trade.

(2) If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Company and the amount of such cost and charge shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

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Lights on
works during
construction.

20. The Company shall at or near the works below high-water mark authorised by this Act during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade require or approve and if the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Lights after
completion
of works.

21. The Company shall at the outer extremity of their works below high-water mark exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall direct and if the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Survey of
works by
Board of
Trade.

22. If at any time the Board of Trade deem it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Company on in over through or across tidal lands or tidal waters or of the intended site of any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Abatement
of work
abandoned
or decayed.

23. If any of the works constructed by the Company under the powers of this Act on in over through or across tidal lands or tidal waters are abandoned or suffered to fall into decay the Board of Trade may abate and remove the same or any part of them and restore the site thereof to its former condition at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

(2) *Ferries.*

Acquisition
of Creeksea
Ferry.

24. The Company may purchase and acquire by agreement (but not otherwise) all the rights of ferry and the ferry across the River Crouch between the parishes of Canewdon

and Creeksea and known as the Creeksea Ferry and the tolls and dues arising therefrom together with all piers landing stages lands houses property and rights belonging to or connected with such ferry and may maintain and work the ferry undertaking and may provide and maintain such approaches landing stages buildings works and other conveniences in connection therewith as may be necessary for working the same and as the Board of Trade may in writing approve.

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25. Subject to the provisions of this Act the Company may establish maintain work and use ferries for passengers animals vehicles and goods across the River Crouch and the River Blackwater and may purchase construct hire and provide employ maintain and sell or lease vessels propelled by steam electrical or other mechanical power for carrying on the ferries in the most efficient manner with all proper appliances and conveniences including the laying down and maintaining of chains cables and other apparatus along across over or under the said rivers Provided that the Company shall not make use of nor interfere with the bed of the River Crouch for a greater width than three hundred feet on each side of the ferry if the ferry is worked by a chain nor in any other case than one hundred feet on each side of the ferry.

Company may establish maintain and work ferries.

26. Notwithstanding anything contained in this Act any chains cables pipes or wires to be laid or placed by the Company under or across any tidal water shall be laid or placed at such depth under or such height over the tidal water as the Board of Trade may require.

Restriction on laying cables &c.

27. The Company may from time to time appoint a sufficient number of persons to preserve order on or at any landing place or other work constructed or acquired by the Company.

Persons may be appointed to preserve order &c. at ferry works.

PART III.

LANDS.

28. Subject to the provisions of this Act the Company may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purposes of the piers and ferries or for any purposes connected therewith.

Lands for piers and ferries.

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Power to
grant ease-
ments &c. by
agreement.

29. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to sell
&c. lands.

30. Subject to the provisions of the Lands Clauses Acts the Company may from time to time sell lease or otherwise dispose of in such manner for such consideration and on such terms and conditions as they think fit and in case of sale either in consideration of a gross sum or of an annual rent or of any payment in any other form any lands or buildings or any interest in any lands or buildings acquired by them and not required for the purposes of the undertaking and may execute and do any deed act or thing proper for effectuating any such sale lease or other disposition.

Period for
compulsory
purchase of
lands.

31. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

PART IV.

RATES.

(1) *Piers.*

Rates for
persons and
goods.

32. The Company may demand and receive for every person using the piers or landing places or who shall land from or embark on any vessel at the piers or landing places and in respect of passengers' luggage or of any goods landed shipped or transhipped at the piers or landing places any sums not exceeding the several rates and sums specified in the First Schedule to this Act.

Rates for
vessels.

33. The Company may subject to the provisions of this Act demand and take in respect of vessels using the piers or landing places any sums not exceeding the several rates and sums specified in the First Schedule to this Act and every such sum shall be paid by the master of the vessel and in the case of

vessels trading to and from or frequently using the piers or landing places the Company may agree to charge such annual or other sum as they may think reasonable by way of compounding for the rates or sums payable in respect of such vessel but so that no preference be in any case given to any person.

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34. The Company may erect or provide such warehouses as they may think necessary for storing and preserving goods articles or things shipped or unshipped received or delivered from or upon the piers and may charge in respect of such storage and preservation the rates specified in the First Schedule to this Act.

Rates for
warehouses
&c.

35. The Company may levy for and in respect of the use of cranes at the piers and for weighing and for the use of machinery and barges the rates respectively specified in the First Schedule to this Act and all such rates shall be paid by the owners or persons in charge of the goods lifted or by the owner agent master or other person in charge of the vessels using the said cranes machinery or barges or requiring the services specified in the First Schedule.

Rates for
cranes &c.

36. All ballast to be discharged or removed from or put into any vessel using the piers and all services in relation to the stowing and trimming thereof shall if and when the Company so determine be discharged or removed or performed by the Company and the Company may fix such reasonable rates as they may think proper not exceeding those mentioned in the First Schedule to this Act to be paid for the supply and removal of ballast from and into vessels and such ballast rates shall be payable by the master or owner of every vessel which discharges or loads any ballast at the piers to the Company in respect of the vessels into or out of which such ballast is loaded or discharged and shall be recoverable by the Company as other rates in respect of vessels are by this Act recoverable and no persons other than the Company shall supply ballast unless with the permission of the Company.

Company
may fix
ballast rates.

37. The Company may supply water to vessels at the piers and charge therefor any sum not exceeding that mentioned in the First Schedule to this Act.

Company
may supply
water.

38. If any vessel using the piers whether the same vessel shall previously have paid or been liable to pay rates or not shall

Further rates
for vessels
remaining

A.D. 1905. remain at the piers for any longer space of time than twenty-four
at piers hours the Company may demand for every such vessel a further
longer than rate of twopence per ton for every three hours and so on in pro-
24 hours. portion for every subsequent three hours during which any such
vessel shall remain as aforesaid beyond the said period of twenty-
four hours in addition to the rates payable by virtue of this Act
Provided always that such additional rates shall not be payable
for any vessel which shall have been detained by stress of
weather.

Charges for
services.

39. The Company may demand and take for all services rendered by them in respect of the shipping transshipping and unshipping handling weighing watching and protecting animals and goods and for preparing and furnishing certificates of weight and for any other service with respect to animals and goods shipped transhipped unshipped warehoused or deposited by the Company for which rates or charges are not specifically fixed by this Act such sums as they think fit or as may be agreed upon between the Company and the person desiring to avail himself of such services and the Company may render any such services when they think proper Provided that such charges shall at all times be made equally to all persons in respect to the same description of services and accommodations.

(2) *Ferries.*

Ferry tolls.

40. The Company may demand and receive for the use of the ferries and for the conveyance of passengers animals vehicles and goods any tolls (in this Act called "ferry tolls") not exceeding the several rates and sums specified in the Second Schedule to this Act Provided always that the Company may charge such sum or sums as they think fit not exceeding fifty per cent. above those set out in the said Second Schedule for the use of the ferries and the conveyance of passengers animals vehicles and goods in any vessels belonging to or provided by the Company between the hours of nine in the evening and five in the morning.

Taking and
recovery of
tolls.

41. The ferry tolls shall be paid to such persons and at such places upon or near to the ferries and in such manner and under such regulations as the Company shall by notice to be annexed to the account or list of tolls appoint and the Company

may recover such tolls in a summary manner as a civil debt or by action in any court of competent jurisdiction. A.D. 1905.

42. If any dispute arise concerning the amount of the ferry tolls due to the Company the same shall be ascertained by a court of summary jurisdiction. Disputes as to amount of tolls chargeable.

43. If any difference arise between any toll collector or other officer of the Company and any owner of or person having the charge of any articles liable to ferry tolls respecting the weight quantity or nature of such articles such collector or other officer may lawfully detain and examine gauge or otherwise measure all such articles conveyed thereby and if upon such measuring such articles appear to be of greater weight or quantity or of other nature than shall have been stated in the account given thereof then the person who shall have given such account or the respective owners of such articles as the case may be shall pay the costs of such measuring but if such articles appear to be of the same or less weight or quantity than shall have been stated in such account then the Company shall pay such costs and they shall also pay to such owner of or person having charge of such articles such damage (if any) as shall appear to a court of summary jurisdiction to have arisen from such detention. Differences as to weights.

44. The Company shall provide and maintain at or near the ferries weighing machines and weights and scales for weighing and measuring goods or articles liable to the ferry tolls. Company to provide weighing machines weights &c.

45. A list of all the ferry tolls from time to time appointed by the Company to be taken shall be published by the same being printed and exhibited in some conspicuous place on the toll gates or toll houses or places where such tolls shall be payable and also on some conspicuous part of the vessels plying at the ferries. List of tolls to be printed and exhibited.

46. No ferry tolls shall be demanded or taken by the Company for the use of the ferries during any time at which the list of tolls hereinbefore directed to be exhibited in respect of the ferries shall not be so exhibited and if any person wilfully pull down deface or destroy any such list of tolls he shall forfeit a sum not exceeding five pounds for every such offence. Tolls to be taken only while list exhibited.

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Penalties
on toll col-
lectors.

47. Every toll collector who shall commit any of the following offences shall forfeit a sum not exceeding ten pounds for each such offence (that is to say):—

- (a) If he refuse to tell his Christian name and surname to any person demanding the same who shall have paid or tendered the tolls demanded of him or if he give a false name to any such person :
- (b) If he wilfully and with intent to defraud demand or take a greater or less toll from any person than he shall be authorised to do by virtue of this Act and of the orders of the Company made in pursuance thereof:
- (c) If upon the legal toll being paid or tendered he do unnecessarily detain or wilfully hinder any goods or any person from passing by the ferries :
- (d) If he make use of any scurrilous or abusive language to any person lawfully using the ferries.

Penalty on
persons
using vessels
without
paying toll.

48. If any person wilfully and with intent to defraud travel or attempt to travel in any vessel provided by the Company in connection with the ferries without paying the ferry toll which shall have been demanded from him and be payable by him under this Act every such person shall for every such offence forfeit a sum not exceeding forty shillings.

Persons may
be prevented
from using
ferries on
refusal to
pay toll.

49. If the ferry toll payable by any person desirous of using the ferries or of being conveyed on any vessel provided by the Company be demanded from him before using the ferries or entering the vessel and such person shall after demand from him of the ferry toll payable for such user or conveyance (such demand being made by any collector or other person appointed to receive the same toll) knowingly and wilfully refuse or neglect to pay the same or any part thereof the collector or other person so appointed may refuse to permit the person so in default to use the ferries or enter the vessel in respect of which the toll ought to be or to have been paid and may by himself or with such assistance as he shall think necessary stop and prevent the person so in default from using the ferry or entering the vessel.

Power to
provide
goods accom-
modation in

50. In connection with the ferries the Company may erect and provide such warehouses sheds and other buildings works and conveniences as they think necessary for the

storage and accommodation of animals and goods and for the loading and unloading of animals and goods and may make such reasonable charges as they think fit for all or any of the accommodation and services so provided or performed and the amount of such charges shall be recoverable in like manner as ferry tolls.

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 connection
 with ferries.

51. The Company may from time to time enter into composition with any company person or persons with respect to the payment of any ferry tolls authorised by this Act but so that no preference be in any case given to any person.

Power to
 enter into
 composition
 for payment
 of tolls &c.

PART V.

ADDITIONAL CAPITAL.

52. The Company may apply towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by the Order of 1904 and which are not required for the purposes to which they are by that Order made specially applicable.

Company
 may apply
 corporate
 funds.

53. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise any additional capital not exceeding in the whole one hundred and fourteen thousand pounds by the issue at their option of new ordinary shares or stock or new preference shares or stock or partly by any one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof Provided always that not more than one half of such additional capital shall be issued as preference shares or stock.

Power to
 raise addi-
 tional capi-
 tal.

54. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the capital which the Company were authorised to raise by the Order of 1904

New shares
 or stock to
 be subject
 to same
 incidents as
 other shares
 or stock.

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Dividends on
new shares
or stock.

55. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on such new shares or to the whole amount of such stock as the case may be.

Shares or
stock raised
under this
Act and
Order of
1904 may be
of same
class.

56. Subject to the provisions of the Order of 1904 and to the provisions of this Act the Company may if they think fit raise by the creation and issue of shares and stock of one and the same class all or any part of the aggregate capital which they are by that Order and this Act respectively authorised to raise by the creation and issue of shares and stock.

Power to
borrow.

57. The Company may in respect of the additional capital of one hundred and fourteen thousand pounds which they are by this Act authorised to raise borrow on mortgage of the undertaking any moneys not exceeding in the whole thirty-eight thousand pounds and of that sum they may borrow one thousand pounds in respect of each three thousand pounds of capital but no part thereof shall be borrowed until the portion of additional capital by this Act authorised in respect of which it is to be borrowed is issued and accepted and one half thereof paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that the whole of such portion of such capital has been issued and accepted and that one half thereof has been paid up and that not less than one fifth part of the amount of each separate share in such portion of additional capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such portion of additional capital was issued *bonâ fide* and is held by the persons to whom the same was issued or their executors administrators successors or assigns and that such persons or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate

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that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. A.D. 1905.

58. Section 98 of the Order of 1904 whereof the marginal note is "For appointment of a receiver" is hereby repealed but subject and without prejudice to any appointment of a receiver or proceedings taken under or by virtue of the provisions thereof and in force or pending at the time of the passing of this Act. Provisions of Order of 1904 as to appointment of a receiver repealed.

59. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole. Appointment of receiver.

60. The Company may create and issue debenture stock subject to the provisions of section 99 of the Order of 1904. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock. Debenture stock.

61. All moneys raised by the Company under this Act whether by shares stock debenture stock or by borrowing shall be applied only to the purposes of this Act and to the general purposes of the undertaking being in every case purposes to which capital is properly applicable. Application of moneys.

PART VI.

MISCELLANEOUS.

62. Notwithstanding anything in this Act contained no building or erection shall be built or set up under this Act upon the pier by this Act authorised on the north side of the River Crouch or upon any land belonging to William Rome on the same side of the said river except such as may be actually necessary for the landing and embarking of passengers and goods without the consent in writing of the said William Rome and his successors in title. For protection of William Rome.

63. The piers and ferries shall for all purposes be and be deemed to be part of the undertaking of the Company as authorised by the Order of 1904. Piers and ferries part of undertaking.

A.D. 1905.

Provisions
as to use of
electrical
power.

64. In the event of the undertaking of the Company being worked by electrical power the following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages or vessels (that is to say) :—

(1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance :

(2) The Company shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :

(3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :

(4) The Company shall be deemed to take all reasonable and proper precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Company either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the

expense involved and to the effect thereof upon the commercial prospects of the undertaking : A.D. 1905.

- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wires lines or apparatus or the currents therein unless in the construction erection maintaining and working of such wires lines and apparatus all reasonable and proper precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Company and any other party with respect to anything in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (7) The Company using electrical power contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be subject to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence continues after conviction thereof Provided always that whether any such penalty has been recovered or not the Board of Trade if in their opinion the Company in the use of electrical power under the authority of this Act have made default in complying with the provisions of this Act or the Board of Trade regulations may by order direct the Company to cease to use electrical power and thereupon the Company shall cease to use electrical power and shall not again use the same unless with the authority of the Board of Trade and in every such case the Board of Trade shall make a special report to Parliament notifying the making of such order :

A.D. 1905.

(8) The expression "Company" in this section includes the successors licencees and lessees of the Company.

For pro-
tection of
Postmaster-
General.

65.—(A) Notwithstanding anything in this Act contained if any of the works by this Act authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply to any such alteration.

(B) In the event of the undertaking or any part thereof being worked by electrical power the following provisions shall have effect (that is to say):—

(1) The Company shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects with due regard to the telegraphic lines used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. If any question arises as to whether the Company have constructed their electric lines or other works or work the undertaking in contravention of this subsection such question shall be determined by arbitration and the Company shall be bound to make any alterations in or additions to their system which may be directed by the arbitrator:

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of their electric lines and works or by the working of the undertaking the Company shall pay the expenses of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection:

(3)—(a) Before any electric line is laid down or any act or work for working the undertaking by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing

the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work : A.D. 1905.

(b) Any difference which arises between the Postmaster-General and the Company or their agents with respect to any requirements so made shall be determined by arbitration under this Act :

(4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Company's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Company enter any of the Company's works for the purpose of inspecting the Company's plant and the working of the same and the Company shall in the presence of such engineer in chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Company pursuant to the Board of Trade regulations :

(5) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :

(6) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the court having cognizance of the case

A.D. 1905.

that the immediate doing of the act or execution of the work was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :

- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid :
- (11) In this section the expression "the Company" includes the successors licencees or lessees of the Company.

For protection of
Sir Henry
Mildmay
and others.

66. For the protection of Sir Henry Paulet St. John Mildmay and his successors in estate and of the owners lessees and occupiers for the time being of the Burnham Oyster Fishery (hereinafter collectively referred to as "Sir Henry Mildmay") and also of Ernest John Smith Arnold Edward Smith Witney Charles Palmer Smith and John Thomas Rogers and William Rome in respect of any several oyster layings belonging to them in the River Crouch of which any part is within half a mile of the ferry and of their successors in estate and the lessees and occupiers for the time being of such oyster layings respectively (in this section respectively with their respective successors in estate called and severally referred to as "the owners") the following provisions shall except so far as it may be otherwise

agreed in writing between the Company and the owners have A.D. 1905.
effect (that is to say):—

- (1) Section 51 of the Order of 1904 whereof the marginal note is "For the protection of landowners near River Crouch" shall be read as if the word "March" were substituted for the word "February" in subsection (1) thereof:
- (2) Before commencing to construct any buildings or works or to alter any buildings or works at or near the said fishery or layings or in or under the River Crouch in connection with the piers and ferry on the said river by this Act authorised the Company shall submit plans and sections of the said buildings works or alterations to Sir Henry Mildmay and to the said William Rome for their approval respectively (which shall not be unreasonably withheld) and if neither Sir Henry Mildmay nor the said William Rome signify approval or disapproval of such plans and sections within twenty-eight days after receipt thereof they shall be taken to have approved of the same and a copy of the said plans and sections shall be open to the inspection of the owners at some convenient place and at convenient times during the said twenty-eight days of which place and times the Company shall send notice to each of the owners named above at the same time as the plans and sections are submitted to Sir Henry Mildmay and William Rome as aforesaid:
- (3) The Company shall so construct use or alter such buildings and works as not to damage or interfere with the said fishery or layings:
- (4) Sir Henry Mildmay and the owners or an engineer or surveyor appointed by them respectively shall be entitled at all reasonable times to inspect the said piers and ferry and the works connected therewith and the Company shall give all facilities for such inspection:
- (5) Notwithstanding anything in this Act contained the Company shall not dredge or deepen any part of the bed and foreshore of the River Crouch without the consent of such of the owners as are affected by such dredging or deepening:

A.D. 1905.

- (6) The Company shall so work the undertaking in all respects as not to damage or interfere with the said fishery or layings and the working thereof respectively in any way which can practically be avoided :
- (7) The Company shall make compensation to Sir Henry Mildmay and the owners respectively according to their respective rights and interests for any damage to interference with or any injurious affection whatsoever to the said fishery or layings which may be caused by or in consequence of or may result from any of the works by this Act authorised or the carrying on and working of the said piers and ferries or any act or default of the Company their contractors servants or agents and whether such damage interference or injurious affection shall happen during the construction of the works or at any time thereafter such compensation in case of dispute to be settled in manner provided by the Lands Clauses Acts with reference to disputed compensation :
- (8) If any difference not otherwise provided for arises under this section between the Company and the owners that difference shall from time to time and as often as the same shall arise be referred to arbitration in manner provided by section 119 of the Order of 1904.

For protection of
Tollesbury
and Mersea
(Black-
water) Oys-
ter Fishery
Company
Limited.

67. For the protection of the Tollesbury and Mersea (Blackwater) Oyster Fishery Company Limited the lessees and occupiers for the time being of the oyster fishery on the River Blackwater (hereinafter referred to as "the limited company") in respect of any several oyster fishery and layings belonging to them in the River Blackwater and of their successors the following provisions shall except so far as it may be otherwise agreed in writing between the Company and the limited company have effect (that is to say) :—

- (1) Before commencing to construct any works at or near the said fishery or layings or in or under the River Blackwater in connection with the pier at Bradwell-on-Sea and the ferry on the said river by this Act authorised the Company shall send copies of the plans and sections of the said works to the limited company :

- (2) The limited company or an engineer or surveyor appointed by them shall be entitled at all reasonable times during the construction thereof to inspect the pier and ferry and the works connected therewith at Bradwell-on-Sea and the Company shall give all reasonable facilities for such inspection: A.D. 1905.
- (3) The Company shall so work the undertaking in all respects as not to damage or interfere with the said fishery or layings and the working thereof respectively in any way which can practically be avoided:
- (4) All soil and materials which in the course of the dredging and deepening of the River Blackwater are taken from that part of the bed of the said river of which the limited company are at the time of the said dredging or deepening the occupiers shall if so required be delivered by the Company to the limited company at such place or places as they or their agents shall direct not being more than one mile from the place where such dredging and deepening shall take place Provided that if within seven days after notice given by the Company in writing to such limited company or person no directions for disposal of such soil and materials shall be given the Company may appropriate use and dispose of the same as they think fit:
- (5) The Company shall make compensation to the limited company for any damage or interference with or any injurious affection whatsoever to the said fishery or layings which may be caused by any of the works by this Act authorised at Bradwell-on-Sea or any act or default of the Company their contractors servants or agents during the construction of the works or subsidiary works or which may arise by dredging at any time within the limits of this Act Such compensation in case of dispute to be settled in manner provided by section 119 of the Order of 1904.

68. For the protection of William Allen Lewis and his successors in estate (in this section referred to as "the owner") the following provisions shall except so far as it may be

For protection of
W.A. Lewis.

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A.D. 1905. otherwise agreed in writing between the Company and the owner have effect (that is to say):—

(1) Section 51 of the Order of 1904 whereof the marginal note is “For the protection of landowners near River Crouch” shall be read as if the words “March 1904 made between the Railways and General Construction and Maintenance Company Limited” were substituted for the words “February 1904 made between the Company” in subsection (1) thereof:

(2) The Company shall carry out and perform the provisions of the agreement referred to in section 51 of the Order of 1904 and also the provisions of a supplemental agreement dated the twenty-first day of June one thousand nine hundred and five and made between the Company of the first part the owner of the second part and the said Railways and General Construction and Maintenance Company Limited of the third part.

Application
of deposit.

69.—(1) Notwithstanding anything in this Act contained the Company shall not exercise the powers by this Act conferred upon them on the River Crouch until they have paid as a deposit to the account of the Paymaster-General for and on behalf of the Supreme Court to the credit of ex-parte the Southend and Colchester Light Railways Act 1905 the sum of one thousand pounds (hereinafter called “the deposit fund”) and the Board of Trade shall issue their warrant to the Company for such payment into Court and that warrant shall be sufficient authority for the Company to pay the said sum to the account of the Paymaster-General for and on behalf of the Supreme Court and for the Paymaster-General to issue directions for the same to be received and placed to his account according to the method (prescribed by statute or general rules or orders of court or otherwise) for the time being in force respecting the payment of money into court and without fee or reward.

(2) The deposit fund shall not be paid or transferred to the Company until the completion of the works by this Act authorised and shall be applicable towards compensating Sir Henry Mildmay and William Rome and their respective successors in estate for any lands taken and any damage or interference with or injurious affection suffered by them

respectively or their respective properties in the exercise by the Company of any of the powers conferred upon them by this Act and if no such compensation is payable or if a portion of the deposit fund has been found to be sufficient to satisfy all just claims in respect of such compensation then the deposit fund or such portion thereof as may not be required as aforesaid shall be dealt with in manner provided in section 112 (Application of railway deposit) of the Order of 1904 in respect to the railway deposit therein referred to. Provided that nothing herein contained shall take away limit or affect the right of Sir Henry Mildmay and William Rome respectively and their respective successors in estate to full compensation for any damage interference with or injurious affection to their properties respectively.

A.D. 1905.

70. For the protection of the mayor aldermen and burgesses of the borough of Colchester (in this section called "the corporation") the following provisions shall have effect (that is to say):—

For protection of corporation of Colchester.

(1) The Company shall pay to the corporation a sum equal to twenty-five per centum on all rates taken under Part III. of Schedule I. of this Act in respect of all goods consigned to the borough of Colchester or places beyond which are landed at the pier on the north bank of the River Blackwater constructed under the powers of this Act and in respect of goods carried from the borough which are shipped at the pier. Provided that all goods landed at the pier and therefrom intended to be conveyed to the borough or places beyond shall be deemed to have been consigned to the borough or places beyond. Provided further that the sums payable under this section shall not in any one year exceed the sum of one thousand pounds:

(2) The Company shall keep separate accounts in respect of all rates received by the Company under Part III. of Schedule I. of this Act and a copy thereof shall once in every year within one month after the end of the Company's financial year be submitted to the corporation duly verified by statutory declaration of the secretary of the Company:

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(3) Any dispute or difference arising under this section shall be referred to arbitration under the terms of the Arbitration Act 1889.

Byelaws.

71. In addition to any other powers for making byelaws conferred on the Company by this Act they may make byelaws in relation to the piers and ferries for all or any of the following matters (that is to say):—

For regulating the collection and levying of the rates authorised by this Act to be taken by the Company in respect of the piers and ferries:

For regulating the conditions of the user of any portion of the piers ferries and works:

For preventing nuisance or annoyance by smoke and noise caused by vessels and the machinery and appliances thereof:

For preventing injury to and protecting the piers ferries and works and property thereon or attached thereto:

For preventing refuse of any kind being thrown or suffered to fall into the sea within one hundred yards of the piers:

For regulating the conduct of persons frequenting the piers ferries and works and approaches thereto and preserving order thereon and therein:

For regulating the removal and disposal of ballast brought by vessels to the piers the supply of ballast to vessels at the piers and for preventing ballast being thrown overboard from vessels within the limits of or so as to obstruct access to the piers and ferries.

General provisions as to byelaws.

72. The provisions of the Harbours Docks and Piers Clauses Act 1847 with respect to the making and confirmation of byelaws to be made by the Company under that Act shall apply to all byelaws in relation to the piers which the Company are authorised by this Act to make Provided that all byelaws made under the said Act of 1847 and this Act shall be confirmed by the Board of Trade and shall require no other confirmation.

Power to let piers and ferries.

73. The Company may let and lease for any period not exceeding seven years the piers and ferries and any or either of them or any parts thereof to any company body or person together with the tolls rates duties and other charges authorised to be taken in respect thereof or may let or lease as aforesaid

any warehouses sheds refreshment or other rooms buildings or conveniences thereon separately from any other part of the piers and ferries upon such terms and conditions and for such period not exceeding three years as they think fit or may sell such warehouses sheds refreshment or other rooms buildings or conveniences separately from any other part of the piers and ferries and such company body or person shall and may exercise all or any of the powers conferred upon the Company by this Act in relation to the piers and ferries and shall be subject to the same provisions in respect thereof as are the Company under this Act.

A.D. 1905.

74. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and also all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to or along and from and over the piers and ferries without payment.

Lifeboat
crew exempt
from tolls.

75. Officers of the Board of Trade and of His Majesty's Customs and Inland Revenue persons in any Government Department and officers of police in the execution of their duty and licensed pilots shall at all times have free ingress and egress to from and over the piers ferry works and landing places by land and with their vessels and shall be at liberty to pass and repass by the ferry boats without payment.

Exemption
of Govern-
ment officials
and police
officers and
pilots from
tolls.

76. The Company may in connection with and for the purposes of the piers and ferries enter into and carry into effect contracts and agreements with railway and other companies ship-owners and owners of vessels and other persons with reference to the receiving forwarding and conveyance of passengers and traffic of all kinds to from or viâ the piers and ferries and the granting of through rates through bookings and other facilities but so that no preference be in any case given to any body or person.

Power to
enter into
agreements
with railway
and other
companies.

77. Notwithstanding anything in this Act or in any Act or Acts incorporated herewith the Company may out of any moneys which they are by this Act authorised to raise pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him from the

As to pay-
ment of
interest out
of capital
during con-
struction.

A.D. 1905. — respective times of such payments until the expiration of the time limited by this Act for the completion of the piers and works by this Act authorised or such less period as the directors may determine subject to the following conditions (that is to say):—

- (a) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the Company that two thirds at least of the share capital authorised by this Act in respect of which such interest may be paid has been actually issued and accepted and is held by shareholders who or whose executors administrators successors or assigns are legally liable for the same:
- (b) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear:
- (c) The aggregate amount to be so paid for interest shall not exceed seven thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one third of the amount paid for interest as aforesaid:
- (d) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares and in every certificate of shares:
- (e) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as hereinbefore and in section 102 of the Order of 1904 set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

78. Nothing in this Act shall affect prejudicially any estate right power privilege or exemption of the King's most Excellent Majesty and in particular nothing herein contained shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give).

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—
Saving
rights of
Crown.

79. Nothing in this Act contained shall extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the lord of the manor of Burnham-with Mangapp and Creeksea otherwise Cricksea otherwise Crixeth.

Saving
rights of
lord of
manor.

80. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to execute any other work or undertaking.

Deposits for
future Bills
not to be
paid out of
capital.

81. Nothing contained in this Act shall exempt the piers and ferries or the Company from the provisions of the Merchant Shipping Acts or of any general Act relating to harbours and piers or to dues on shipping or on goods carried in ships now in force or which may be passed during the present or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the rates authorised by this Act.

Provision
as to Mer-
chant Ship-
ping Acts
&c.

82. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Coss of Act.

A.D. 1905.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

I.—RATES FOR USE OF PIERS AND LANDING PLACES.

For use of Piers.

	<i>s.</i>	<i>d.</i>
For every passenger or other person who shall land from or embark on any vessel at any pier for each time any sum not exceeding ...	0	4
For every person who shall land from or embark on any yacht pleasure-boat or fishing-boat at any pier for each time any sum not exceeding ...	0	2
For every person who shall use any pier for the purpose of walking for exercise pleasure or any other purpose except for embarking or disembarking for each time any sum not exceeding ...	0	2
For every bath or sedan chair taken on any pier for each time any sum not exceeding ...	0	4
For every perambulator taken on any pier for each time any sum not exceeding ...	0	2
For every master or member of the crew of any vessel using any pier for the purpose of going to or returning from his own vessel an annual sum not exceeding ...	10	0

For use of Landing Places.

For passengers or other persons conveyed in vessels not belonging to or provided by the Company—

For every person each time	0	3
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II.—RATES FOR PASSENGERS' LUGGAGE LANDED SHIPPED OR TRANSHIPPED AT THE PIERS.

For every trunk portmanteau box parcel or other package within the description of luggage and not borne by passengers not exceeding

28 pounds	0	2
Over 28 pounds and not exceeding 84 pounds	0	4
Over 84 pounds and not exceeding 112 pounds	0	5
Over 112 pounds and not exceeding 140 pounds	0	6
Over 140 pounds and not exceeding 196 pounds	0	7
Over 196 pounds and not exceeding two hundredweight	0	8
And for every 20 pounds weight in addition	0	1

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III.—RATES FOR VESSELS USING THE PIERS WHARVES AND LANDING PLACES. A.D. 1905.

		Not exceeding per Ton Register.	
<i>For using the Piers.</i>		s.	d.
For every vessel under the burden of 15 tons register	...	0	4
For every vessel of the burden of 15 tons and under 50 tons register.		0	6
For every vessel of the burden of 50 tons and under 100 tons register	...	0	8
For every vessel of the burden of 100 tons and under 150 tons register	...	0	10
For every vessel of the burden of 150 tons register and upwards	...	1	0
For every lighter for each trip	...	0	2
All boats entirely open landing or taking on board passengers or goods each	...	0	6

For using the Landing Places.

For any vessel not belonging to or provided by the Company	...	2	0
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IV.—RATES FOR GOODS AND MINERALS ANIMALS AND THINGS SHIPPED UNSHIPPED TRANSHIPPED RECEIVED OR DELIVERED AT THE PIERS.

The classification is that annexed to and the parts are the parts of the schedule to the Great Eastern Railway Company (Rates and Charges) Order 1891.

		s.	d.
Goods and minerals included in Class A	... per ton	0	6
„ „ „ „ B	...	0	9
„ „ „ „ C	...	1	0
„ „ „ „ 1	...	1	6
„ „ „ „ 2	...	2	0
„ „ „ „ 3	...	3	6
„ „ „ „ 4	...	4	0
„ „ „ „ 5	...	5	0
Animals included in Part II. description 1	... each	1	6
„ „ „ „ 2	...	1	0
„ „ „ „ 3	...	0	4
Things included in Part III.	...	2	0

(and sixpence for each additional quarter of a ton over the weight specified.)

Animals and things included in Part IV. ... such reasonable sum as the Company may think fit.

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A.D. 1905. *For all Timber Deals Iron manufactured Articles Wares Merchandise Goods*
as follows:—

				Across the Crouch.	Across the Blackwater.
				s. d.	s. d.
For every ton weight and upwards and so in proportion					
for a greater or lesser quantity	...	...	per ton	2 6	5 0
For all flour corn and other grain and seeds	...		per sack	0 4	0 8
For all kinds of fruit	...	...	per bushel	0 1½	0 3
"	"	...	per sack	0 4	0 8
For all kinds of meat and fish	...	...	per cwt.	0 3	0 6

For all goods not enumerated in this schedule such sums as may be agreed.

In charging rates on goods the gross weight or measurement of all goods to be taken and for any less weights measures or quantities than those above specified a proportion of the respective rates shall be charged.

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